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TAB 4



Board of Education Report

File #: Rep-156-25/26, **Version:** 1

Agenda Date: 11/18/2025

In Control: Facilities

Adopt Resolution Certifying Los Angeles Unified School District's Compliance with California Education Code § 8973

Facilities Services Division and Division of Instruction

Brief Description:

(Adopt Resolution Certifying Los Angeles Unified School District's Compliance with California Education Code § 8973) Recommends adoption of a Board Resolution certifying that Los Angeles Unified School District's (LAUSD, Los Angeles Unified, or District) extended-day kindergarten program meets the statutory criteria in California Education Code § 8973 (EC 8973).

Action Proposed:

Adopt the attached Board of Education resolution (Exhibit A) declaring LAUSD compliance with California Education Code Section 8973 requirements.

Background:

Los Angeles Unified secured \$4,459,128 through Office of the Public School Construction's (OPSC) California Preschool, Transitional Kindergarten, and Full-Day Kindergarten Facilities Grant Program (Grant) to supplement funding for the Amestoy Elementary School Classroom Replacement Project for the construction of three transitional kindergarten classrooms and three full-day kindergarten classrooms (Project). As a condition of this funding, LAUSD must submit a Board Resolution affirming compliance with Education Code § 8973, which allows kindergarten within an early primary program to exceed four hours (exclusive of recesses) provided the day does not exceed the length of the primary grade day and the program offers ample opportunities for both active and quiet, developmentally appropriate instruction. While LAUSD currently operates an extended-day kindergarten program that meets these criteria, the required Board Resolution certifying compliance has not yet been adopted.

Transitional Kindergarten (TK) is part of a two-year kindergarten program. Students are placed in TK the first year and kindergarten in the second year based on age level eligibility. This program is developmentally appropriate, and standards align instruction, while providing ample opportunities for active and quiet activities as necessary.

Expected Outcomes:

Upon adoption of the attached resolution, the District will be compliant with Education Code Section 8973. In addition, staff will be able to certify that the declaration requirement of the Grant has been met.

Board Options and Consequences:

If the proposed resolution is not approved, the District will not be compliant with EC section 8973, and the District will be obligated to return the \$4,459,128 in State grant funds already received for the Project, plus interest. The District would then need to use local bond funds to cover the loss of State funds and would become ineligible to receive other State grants for extended-day kindergarten facilities.

Policy Implications:

Staff's proposal also aligns with Pillar 2, Priority A (Joy and Wellness: Welcoming Learning Environments) and Pillar 4, Priority B (Operational Effectiveness: Modernizing Infrastructure) of LAUSD's 2022-2026 Strategic Plan by facilitating student access to safe and healthy learning environments.

Budget Impact:

The Project is funded by the Grant and Bond Program funds earmarked for major modernizations, upgrades, and reconfigurations to school campuses. This action will not affect the Board-approved budget for the Project, but failure to pass the proposed resolution would necessitate replacement of the State Grant funds with Bond Program funds. The action does not have an impact on General Funds.

Student Impact:

Approval of this action will also allow LAUSD to comply with the requirements of the Grant, thus enabling the District to retain existing state funding and possibly receive future funding to construct new classrooms and modernize existing facilities, which will facilitate student access to safe and healthy learning environments.

Equity Impact:

EC section 8973 allows for extended-day kindergarten programs, which can exceed the standard four-hour day, provided the district's governing board declares the extended day does not exceed the length of the primary school day and the program integrates ample time for both active and quiet activities.

Issues and Analysis:

Adopting the resolution will bring the District into compliance with EC section 8973 for extended-day kindergarten, while supporting the implementation of the Project. It will not alter the Board-approved Project scope or alter how the District implements extended-day kindergarten.

Attachments:

Exhibit A: Resolution of the Board of Education of the Los Angeles Unified School District Certifying Compliance with California Education Code section 8973

Submitted:

10/23/25

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RESPECTFULLY SUBMITTED,



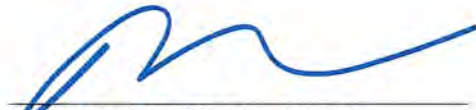
ALBERTO M. CARVALHO
 Superintendent

APPROVED BY:



PEDRO SALCIDO
 Deputy Superintendent,
 Business Services and Operations

REVIEWED BY:



DEVORA NAVERA REED
 General Counsel

✓ Approved as to form.

APPROVED & PRESENTED BY:



KRISZTINA TOKES
 Chief Facilities Executive
 Facilities Services Division

REVIEWED BY:



KURT E. JOHN
 Deputy Chief Financial Officer

✓ Approved as to budget impact statement.

APPROVED & PRESENTED BY:



FRANCES BAEZ
 Chief Academic Officer
 Division of Instruction

APPROVED & PRESENTED BY:



PIA SADAQATMAL
 Chief of Transitional Programs
 Office of Transitional Programs

**LOS ANGELES UNIFIED SCHOOL DISTRICT
Board of Education Report
Exhibit A**

**RESOLUTION OF THE BOARD OF EDUCATION OF THE LOS ANGELES UNIFIED
SCHOOL DISTRICT CERTIFYING COMPLIANCE WITH CALIFORNIA
EDUCATION CODE §8973**

WHEREAS, California Education Code Section 8973 permits kindergarten programs within an early-primary program to exceed four hours, exclusive of recesses, provided that:

- The governing board of the school district declares that the extended-day kindergarten program does not exceed the length of the primary-school day; and
- The program includes ample opportunity for both active and quiet activities within an integrated, experiential, and developmentally appropriate educational program;

WHEREAS, the Los Angeles Unified School District (LAUSD) aims to enhance early primary programs by implementing an extended-day kindergarten program that meets the above requirements;

NOW, THEREFORE, BE IT RESOLVED BY THE BOARD OF EDUCATION (BOARD) OF THE LOS ANGELES UNIFIED SCHOOL DISTRICT, COUNTY OF LOS ANGELES, CALIFORNIA, AS FOLLOWS:

- The extended-day kindergarten program does not exceed the length of the primary-school day; and
- The program offers ample opportunity for both active and quiet activities within an integrated, experiential, and developmentally appropriate learning program.

Adopted and signed this 18th day of November 2025, by the Board of LAUSD.

LOS ANGELES UNIFIED SCHOOL DISTRICT
Board of Education Report
Exhibit A

Passed, Approved and Adopted this 18th Day of November 2025:

<u>Scott Schmerelson</u>	<u>Board President</u>	<u>Dr. Rocio Rivas</u>	<u>Board Vice President</u>
(Name and Title)		(Name and Title)	
<u>Sherlett Hendy Newbill</u>	<u>Board Member</u>	<u>Nick Melvoin</u>	<u>Board Member</u>
(Name and Title)		(Name and Title)	
<u>Karla Griego</u>	<u>Board Member</u>	<u>Kelly Gonez</u>	<u>Board Member</u>
(Name and Title)		(Name and Title)	
<u>Tanya Ortiz Franklin</u>	<u>Board Member</u>		
(Name and Title)			

CERTIFICATION

I do hereby certify that the foregoing resolution was duly approved and adopted by the Board of the LAUSD at a meeting held on the 18th day of November 2025 by the following vote:

AYES:

NOES:

ABSENT:

ABSTAIN:

Michael A. McLean
Executive Officer of the Board of Education

Date